

File No.: EXP202209912

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: B.B.B. (*hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on August 28, 2022. The complaint is directed against the individual identified as C.C.C. with NIF ***NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows: "capture of spaces in a community garage without prior authorization from the Community of Property Owners where the garage is located, the file ***EXPEDIENTE.1 was initiated, within which the ***PROCEDIMIENTO.1 was processed, resulting in a sanctioning resolution against the respondent, which was notified to said party through an announcement published in the BOE dated April 8, 2022. The respondent persists in the sanctioned actions, providing an image and a recording dated August 22, 2022, which shows the continuity of the camera subject to the previous sanctioning resolution, without any corrective measures having been adopted."

Along with the notification, a copy of the Resolution of this Agency dated 03/15/22 is provided, as well as a video that proves the presence of a device with a flashing light at the rear of the same, directed towards the transit area of the Community of Property Owners.

SECOND: Upon consulting the database of this Agency, there is a prior procedure against the respondent associated with ***PROCEDIMIENTO.1 in which the described conduct was sanctioned, in the following terms:

TO IMPOSE on C.C.C., with NIF ***NIF.1, for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR, a fine of €1500 (One thousand five hundred euros).

THIRD: On December 16, 2022, the Director of the Spanish Agency for Data Protection agreed to initiate a sanctioning procedure against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

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FOURTH: Upon consulting the database of this agency, it is noted that notification was made by the Official Postal Service on January 18, 2023, and January 19, 2023, marked as "Absent," leaving a notice in the mailbox for the appropriate effects.

Additionally, communication was made via BOE on February 1, 2023, associated with ***EXPEDIENTE.2.

FIFTH: On February 28, 2023, the collaboration of the Local Police of Roquetas de Mar was requested to go to the scene of the events in order to corroborate the aspects required by this agency, without any response having been made in this regard.

SIXTH: On April 26, 2023, a Resolution proposal was issued, agreeing to propose a sanction amounting to €4000, for the infringement of Article 5.1 c) GDPR, for having a device for capturing images that affects third-party areas disproportionately, affecting common areas and without having informed about its presence, a sanction situated in the lower scale for this type of conduct.

Upon consulting the database of this agency on June 7, 2023, the proposal for resolution associated with ***EXPEDIENTE.2 was published in the BOE.

From the actions carried out in the present procedure and the documentation in the file, the following has been established:

PROVEN FACTS

First: The facts arise from the complaint dated 08/28/22 through which the following is conveyed: “capture of spaces in a community garage without prior authorization from the Community of Property Owners where the garage is located, the file ***EXPEDIENTE.1 was initiated, within which the ***PROCEDIMIENTO.1 was processed, resulting in a sanctioning resolution against the respondent, which was notified to said party through an announcement published in the BOE dated April 8, 2022. The respondent persists in the sanctioned actions, providing an image and a recording dated August 22, 2022, which shows the continuity of the camera subject to the previous sanctioning resolution, without any corrective measures having been adopted.”

Second: C.C.C., with NIF ***NIF.1, is identified as the main responsible party.

Third: The presence of a camera inside the vehicle with license plate XXXXXX directed towards the community area of the parking lot is confirmed.

Fourth: There is no presence of an informative sign indicating that it is a video-monitored area, informing about the responsible party, purpose, or how to exercise rights under the current GDPR.

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Fifth: It is not recorded that the governing bodies of the Community have been informed of the presence of the device, nor the reason for its installation.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

In this case, the complaint dated 28/08/22 is examined, through which the complainant conveys the following facts:

“the respondent continues with the video surveillance camera recording the common areas of the Garage (...) not informing the Board of Owners”—file no. 1—.

Article 5.1 c) GDPR provides the following: Personal data shall be:

“adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’).

It should be noted that individuals are responsible for ensuring that the installed systems comply with current legislation, demonstrating that they meet all the requirements established by the applicable regulations.

The installation of such devices must have the mandatory information sign, indicating the purposes and the responsible party for the processing of personal data, if applicable.

In any case, the cameras must be directed towards private spaces, avoiding intimidating neighboring residents with such devices, as well as monitoring transit areas without justified cause.

Furthermore, such devices cannot capture images of public spaces, as this is the exclusive competence of the State Security Forces and Corps.

It is worth noting that even in the case of a “dummy” camera, it must be preferably oriented towards private space, as it is considered that such devices can affect the privacy of third parties, who may feel intimidated by the belief that they are subject to permanent recording.

Individuals cannot install devices for capturing images of public spaces and/or the transit of third

parties, except in cases permitted by the regulations.

The purpose of such devices must be the security of the property and its inhabitants, avoiding the infringement of the rights of third parties who may feel intimidated by them.

The cameras must be limited to the protection of the property owned by the individual in such a way that they do not affect areas of third parties who may feel intimidated by them, as it affects their free transit area.

III

In accordance with the evidence available in this sanctioning procedure, it is considered that the respondent has a video surveillance camera inside their vehicle directed towards a community area, affecting the data of third parties in common areas without the proper authorization.

The initial evidence provided allows us to infer that there is a recording device in a community area, which does not comply with current legislation, without it being demonstrated that it meets the legal requirements.

The installation of video surveillance devices in common areas requires the proper authorization from the Board of Owners, which must be reflected in the corresponding agenda item, except in exceptional circumstances that should be presented to this Agency for proper consideration.

Article 72, section 1 of the LOPDGDD (LO 3/2018, December 5) regarding the statute of limitations for very serious infringements states that "they shall prescribe after three years" and particularly the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

The known facts constitute an infringement attributable to the respondent for violating the content of Article 5.1 c) GDPR, as previously mentioned.

IV

Article 83.5 GDPR provides the following: "Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total global annual turnover of the previous financial year, opting for the higher amount:

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a) The basic principles for processing, including the conditions for consent in accordance with Articles 5, 6, 7, and 9 (...).

In the present case, it is taken into account when justifying the described conduct that the accused has been extensively warned by this agency, showing a reluctant attitude towards the "correction" of the irregularities in the video surveillance system, as well as having a prior precedent within the framework of ***PROCEDIMIENTO.1, which is why the conduct is considered as very serious negligence, reasons that justify the imposition of a sanction amounting to €4000 for the infringement of Article 5.1 c), an initial sanction situated at the lower end of the scale for this type of infringements.

V

The text of the resolution establishes what the infringements committed have been and the facts that have led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully knows their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may motivate such conduct to open a further administrative sanctioning procedure.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the

graduation of the sanctions whose existence has been established,
the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on C.C.C., with NIF ***NIF.1, for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR, a fine of €4000.

SECOND: TO ORDER the summoned party to proceed, within 15 working days from the day following the notification of this act, as follows:

- To immediately remove the camera from inside the vehicle as it is a disproportionate measure affecting the rights of third parties without justified cause, providing a photograph with date and time of such action.

THIRD: TO NOTIFY this resolution to C.C.C.

FOURTH: To warn the sanctioned party that they must pay the imposed sanction once this resolution is enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No. IBAN:

ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXES-BBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next working day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second month following or the next working day thereafter.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

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